

I.

In invoking § 1979 (the old designation will be used hereafter), petitioners contend that its protection of "rights, privileges, or immunities secured by the Constitution" encompasses what "due process of law" and "the equal protection of the laws" of the Fourteenth Amendment guarantee against action by the States. In this contention they are supported both by the title of the Act of 1871 and by its legislative history. See the authoritative statement of Mr. Edmunds, reporting the bill from the Senate Committee on the Judiciary, Cong. Globe, 42d Cong., 1st Sess. 568. See also *id.*, at 332-334, App. 83-85, 310. It is true that a related phrase, "any right or privilege secured . . . by the Constitution or laws," in § 241 of Title 18, U. S. C., was said by a plurality of the Court in *United States v. Williams*, 341 U. S. 70, to comprehend only the rights arising immediately from the relationship of the individual to the central government. And see *United States v. Cruikshank*, 92 U. S. 542.³ But this construction was demanded by § 241, which penalizes conspiracies of private individuals acting as such, while § 1979 applies only to action taken "under color of any statute," etc. Different problems of statutory meaning are presented by two enactments deriving from different

³ Drawing upon the reasoning of the *Slaughter-House Cases*, 16 Wall. 36, this decision determined that only those rights or privileges were secured by the Constitution and laws which were inherent in the status of the individual as a citizen of the National Government, see *Ex parte Yarbrough*, 110 U. S. 651, *Guinn v. United States*, 238 U. S. 347, or which were necessary to the integrity of the federal governmental institution, see *Motes v. United States*, 178 U. S. 458; compare *Logan v. United States*, 144 U. S. 263, with *United States v. Powell*, 212 U. S. 564, or which were created by Congress in the legitimate exercise of its Article I powers, see *United States v. Waddell*, 112 U. S. 76.